

# **BOX HILL REPORTER DISTRICT CRICKET ASSOCIATION INC**

## **Corporate Rules & Statement of Purpose**



**Registered No: A 0032112 P**

**Australian Business No: 87 914 990 602**

**Contains all amendments up to and including those presented to the 2024  
Special General Meeting: 29/4/2025**

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## PRELIMINARY

### 1. NAME

The name of the incorporated body is '**BOX HILL REPORTER DISTRICT CRICKET ASSOCIATION INCORPORATED**' (in these rules called "the Association").

### 2. PURPOSES

The purposes of the **Box Hill Reporter District Cricket Association** are:

1. To promote and administer cricket competitions
2. To foster the development of cricket in all forms
3. To encourage fellowship and cooperation
4. To represent the Association in competitive opportunities
5. To act in the best interests of members and the community

### 3. FINANCIAL YEAR

The financial year of the Association is each period of 12 months ending on 30th April

### 4. DEFINITIONS

In these rules, unless the contrary intention appears:

- **Absolute Majority**, of the Committee, means a majority of the committee members currently holding office and entitled to vote at the time (as distinct from a majority of committee members present at a committee meeting).
- **Annual General Meeting** - means a meeting of members of the Association convened in accordance with Rule 15.
- **Appeal Subcommittee** means a subcommittee appointed by the Tribunal committee or CoM.
- **Associate Member** means a member referred to in rule 8.
- **Box Hill Reporter District Cricket Umpires Association** means an Umpires Association and will be referred to throughout this document as BHRDCUA.
- **By-Laws** - means the By-Laws of the association and competition rules.
- **Chairperson**, of a general meeting or committee meeting, means the person chairing the meeting as required under rule 31.

- **Committee** - means the Committee of Management of the Association. Known as the CoM in this document.
- **Committee Meeting** means a meeting of the Committee held in accordance with these rules.
- **Committee Member** means a member of the Committee elected or appointed under rule 29
- **Disciplinary Meeting** means a meeting of the Committee convened for the purposes of rule 14.
- **Disciplinary Appeal Meeting** means a meeting of the appeal subcommittee convened for the purposes of rule 14.
- **Disciplinary Subcommittee** means the subcommittee appointed under rule 14.
- **Financial Year** - financial year means the 12-month period specified in rule 3.
- **General Meeting** means a general meeting of the members of the Association convened in accordance with Part 4 and includes an annual general meeting and a special general meeting
- **Member** - means a member of the Association in accordance with Rule 5.
- **Ordinary Member of The Committee** - means a member of the Committee who is not an officer of the Association under Rule 29.
- **Secretary** – means the member elected as Association Secretary and/or may be the member appointed to act as the Association's Administration Manager appointed by the CoM.
- **Special General Meeting** - means a general meeting of members of the Association convened in accordance with Rule 16.
- **Special Resolution** means a resolution that requires not less than three-quarters of the members voting at a general meeting, whether in person or by proxy, to vote in favour of the resolution.
- **The Act** - means the Association Incorporation **Act 2012** and includes any regulations made under that Act.
- **The Registrar** means the Registrar of Incorporated Associations.
- **The Regulations** - means the Regulations under the Act.

## **POWERS OF THE ASSOCIATION**

### **5. POWERS OF THE ASSOCIATION**

**5.1.** Subject to the Act, the Association has power to do all things incidental or conducive to achieve its purposes.

**5.2.** Without limiting subrule (1), the Association may:

- a.** acquire, hold and dispose of real or personal property; or
- b.** open and operate accounts with financial institutions; or
- c.** invest its money in any security in which trust monies may lawfully be invested; or
- d.** raise and borrow money on any terms and in any manner as it thinks fit; or
- e.** secure the repayment of money raised or borrowed, or the payment of a debt or liability; or
- f.** appoint agents to transact business on its behalf; or
- g.** enter any other contract it considers necessary or desirable.

**5.3.** The Association may only exercise its powers and use its income and assets (including any surplus) for its purposes.

### **6. NOT FOR PROFIT ORGANISATION**

**6.1.** The Association must not distribute any surplus, income or assets directly or indirectly to its members.

**6.2.** Subrule (6.1) does not prevent the Association from paying a member

- a.** reimbursement for expenses properly incurred by the member; or
- b.** for goods or services provided by the member:

if this is done in good faith on terms no more favourable than if the member was not a member.

## MEMBERS

### 7. MINIMUM NUMBER OF MEMBERS

The Association must have at least 5 members.

### 8. MEMBERSHIP

8.1 Membership of the Association shall consist of:

- (a) **Officers** and **Ordinary Committee** Members of the Association as prescribed in Rule 29. All members will have **1 vote**
- (b) An affiliated member club who has their **Senior XI Men's** team play in the BHRDCA. Each club will be allowed 2 delegates at any AGM, SGM, Senior, Junior Delegates Meeting, but will be entitled to **1 vote per club**.
- (c) Any affiliated Association: such as the **BHRDCUA**, will be allowed to have 1 delegate attend any AGM's or SGM's and will be entitled to **1 vote per club**.
- (d) An associated member club is any club **without** their **Senior XI Men's** team playing in the BHRDCA, i.e. a junior team or Vets team only. Associate members are **not** entitled to attend or any vote at an AGM or SGM, they will be allowed 2 delegates at any other meetings and will be entitled to **1 vote per club**.
- (e) The BHRDCA CoM may appoint an **honorary** position from time to time to be appointed to the Association and shall enjoy the rights and privileges of membership. The CoM reserves the right to attach a timeline to that role.
- (f) The BHRDCA CoM Association may elect a **co-opted member** to its committee as it sees fit from time to time. They will not be entitled to any votes at any meetings.
- (g) Life Members shall only be elected by an absolute majority of those members present and are entitled to vote at an Annual General Meeting. All rights and privileges of membership shall be available to Life Members.
- (h) Except for Life Membership and the honorary position, membership shall be on a yearly basis.

## 9. APPLICATIONS AS AFFILIATED CLUBS AND AFFILIATED ASSOCIATIONS

9.1 An application for a new membership of a club or association within the BHRDCA

- a) Shall be in writing on the prescribed format as set out by the CoM, by **31<sup>st</sup> July** to be considered as a full **affiliated** member club.
- b) Shall be in writing on the prescribed format as set out by the CoM, by **31<sup>st</sup> August** to be considered as a full **associated** member club.
- c) As soon as practicable after the receipt of an application the Secretary shall refer the application to the CoM for approval.
- d) Upon a nomination being referred to the CoM, the CoM shall decide whether to recommend to the Delegates Meeting approval or rejection of the application.
- e) Upon an application being approved by the CoM the application will be sought approval by the delegates at an AGM, SGM or delegates meeting, no later than the **1<sup>st</sup> week of September**.
- f) A new affiliated or associate club may attend this meeting to speak to the delegates and answer any questions prior to a vote.
- g) If an application for membership is approved by the CoM and the Delegates, the resolution to accept the membership must be recorded in the minutes of the delegates meeting and next CoM meeting.

## 10. ENTRANCE AND ANNUAL SUBSCRIPTION FEE

10.1 There shall be no entrance fee.

10.2 At each annual general meeting, the Association must determine—

- (a) the process for setting the amount of the annual subscription (if any) for the following financial year; and
- (b) the date for payment of the annual subscription.

10.3 The Association may determine that a lower annual subscription is payable by associate members.

10.4 The Association may determine that any new member who joins after the start of a financial year must, for that financial year, pay a fee equal to—

- (a) the full annual subscription; or

(b) a pro rata annual subscription based on the remaining part of the financial year; or

(c) a fixed amount determined from time to time by the Association.

10.5 The rights of a member (including the right to vote) who has not paid the annual subscription by the due date are suspended until the subscription is paid.

## **11. RIGHTS AND CESSATION OF MEMBERSHIP**

**11.1** The right's, privileges or obligations of a Member, an Affiliated Club or Affiliated Association, Affiliated Club, Associate Member, Honorary, Co-opted or Life Member:

- a. except in the case of delegate members, is not capable of being transferred or transmitted.
- b. terminates upon the cessation of affiliation or membership whether by resignation or otherwise.
- c. may cease upon non-renewal of an affiliation fee.
- d. shall cease upon expulsion under the provision of Rule 13.
- e. The membership of a person ceases on resignation, expulsion or death.
- f. If a person ceases to be a member of the association, the secretary must, as soon as practicable, enter the date the person ceased to be a member in the minutes of the CoM.

**11.2** A member of the Association who is entitled to vote has the right:

- (a) to receive notice of general meetings and of proposed special resolutions in the manner and time prescribed by these Rules; and
- (b) to submit items of business for consideration at a general meeting; and
- (c) to attend and be heard at general meetings; and
- (d) to vote at a general meeting; and
- (e) to have access to the minutes of general meetings and other documents of the Association as provided under rule 25; and
- (f) to inspect the register of members.

**11.3** A member is entitled to vote at general or special meetings if:

- (a) the member is a member other than an associate member; and

(b) more than 10 business days have passed since the member became a member of the Association; and

(c) the member's membership rights are not suspended for any reason.

## **12. REGISTER OF NAMES**

**12.1** The Secretary must keep and maintain a register of members that includes—

(a) for each current member—

(i) the member's name; and

(ii) the address for notice last given by the member; and

(iii) the email address last given by the member (if available); and

(iv) the date of becoming a member; and

(v) if the member is an associate member, a note to that effect;  
and

(vi) any other information determined by the Committee; and

(b) for each former member, the name of the person and the date on which the person ceased to be a member of the Association.

**12.2** Any member may, at a reasonable time and free of charge, inspect the register of members.

### **Note**

*Under section 59 of the Act, access to the personal information of a person recorded in the register of members may be restricted in certain circumstances. Section 58 of the Act provides that it is an offence to make improper use of information about a person obtained from the register of members.*

## **DISCIPLINARY PROCEDURES AND GRIEVANCE**

### **13. EXPULSION, SUSPENSION, OR FINING OF MEMBERS**

**13.1.** Subject to these rules, the Committee or Disciplinary Tribunal of the Association, if of the opinion that an Affiliated Association, Affiliated Club, Associate Member or Member has refused or neglected to comply with these

rules, or has been guilty of conduct unbecoming a member, or conduct prejudicial to the interests of the Association, may by resolution –

- a. expel an Affiliated Association, Affiliated Club, Associate Member or Member from the Association
- b. suspend an Affiliated Association, Affiliated Club, Associate Member or Member from the Association for a specified time
- c. fine the Affiliated Association, Affiliated Club, Associate Member or Member in accordance with the By-Laws
- d. impose such other penalty as deemed necessary.

**13.2.** Where the Committee or Disciplinary Tribunal passes a resolution under sub-clause (13.1), the Secretary shall, as soon as practicable, cause to be served on the Affiliated Association, Affiliated Club, Associate Member or Member a notice in writing:

- a. setting out the resolution of the Committee or Disciplinary Tribunal and the grounds on which it was based
- b. stating that the Affiliated Association, Affiliated Club or Member may address the Committee or Disciplinary Tribunal at a meeting to be held not less than **14 days** or more than one calendar month after the service of the notice stating the date time and place of that meeting
- c. informing the Affiliated Association, Affiliated Club, Associated Member or Member that they may do one or more of the following:
  - i. Attend that meeting
  - ii. Give to the Committee or Disciplinary Tribunal before the date of that
  - iii. meeting a written statement seeking revocation of the resolution
  - iv. not later than 24 hours before the date of the meeting lodge with the Secretary a notice to the effect that he wishes to appeal to the Delegates Meeting in general meeting against the resolution.

**13.3.** A resolution of the Committee or Disciplinary Tribunal under sub-clause (13.1)

- a. does not take effect unless the members at a Delegates Meeting held not earlier than **14 days** nor later than one calendar month after the

service on the Affiliated Association, Affiliated Club, Associate Member or Member of a notice under sub-clause (13.2) confirms the resolution in accordance with this clause; and

- b.** where an Affiliated Association, Affiliated Club, Associate Member or Member exercises a right of appeal to the Delegates Meeting under this clause, does not take effect unless the Delegates Meeting confirms the resolution in accordance with this clause.

**13.4.** At a Delegates Meeting of the Association held in accordance with sub-clause (13.2) the meeting:

- a.** shall give the Affiliated Association, Affiliated Club or Member an opportunity to be heard,
- b.** shall give due consideration to any written statement submitted by the Affiliated Association, Affiliated Club or Member; and
- c.** shall by resolution determine whether to confirm or to revoke the resolution.

**13.5.** Where the Secretary receives a notice under sub-clause (2)(d)(iii) they shall notify the Committee, and the Committee shall convene a Delegates Meeting of the Association to be held within **21 days** after the date on which the Secretary received the notice

**13.6.** At a Delegates Meeting of the Association convened under sub-clause (13.5):

- a.** no business other than the question of the appeal shall be transacted.
- b.** the Committee may place before the meeting details of the grounds for the resolution and the reason for passing the resolution.
- c.** the Affiliated Association, Affiliated Club or Member shall be given an opportunity to be heard; and
- d.** the members present shall vote by secret ballot on the question whether the resolution shall be confirmed or revoked.

**13.7.** If at a general meeting:

- a.** At least 50% of the members present vote in person or by proxy in favour of the confirmation of the resolution, the resolution is confirmed; and

- b. in any other case the resolution is revoked.

#### 14. DISPUTES AND MEDIATION

- 14.1. The grievance procedure set out in this rule applies to disputes under these Rules between – (i) A member and another member; or (ii) A member and the Association.
- 14.2. The parties to the dispute must meet and discuss the matter in dispute, and, if possible, resolve the dispute within **14 days** after the dispute comes to the attention of all of the parties.
- 14.3. If the parties are unable to resolve the dispute at the meeting, or if a party fails to attend that meeting, then the parties must, within **10 days**, hold a meeting in the presence of a mediator.
  - a. The mediator must be:
  - b. A person chosen by agreement between the parties; or
    - i. In the absence of agreement:
    - ii. In the case of a dispute between a member and another member, a person appointed by the Committee; or
    - iii. In the case of a dispute between a member and the Association, a person who is a mediator appointed or employed by the Dispute Settlement Centre of Victoria (Department of Justice).
      - 1. A member of the Association can be a mediator.
      - 2. The mediator cannot be a member who is a party to the dispute.
    - iv. The parties to the dispute must, in good faith, attempt to settle the dispute by mediation.
    - v. The mediator, in conducting the mediation, must:
      - 1. Give the parties to the mediation process every opportunity to be heard; and
      - 2. allow due consideration by all parties of any written statement by any party; and
    - vi. ensure that natural justice is accorded to the parties to the dispute throughout the mediation process.

- vii. The mediator must not determine the dispute.
- viii. If the mediation process does not result in the dispute being resolved, the parties may seek to resolve the dispute in accordance with the Act otherwise at law.

## **GENERAL MEETINGS OF THE ASSOCIATION**

### **15. ANNUAL GENERAL MEETINGS**

- 15.1. The Association shall in each calendar year convene an Annual General Meeting. The AGM will be held within 5 months of the end of the financial year.
- 15.2. The CoM may determine the date, time and place of the annual general meeting.
- 15.3. The Annual General Meeting shall be specified as such in the notice convening it.
- 15.4. The ordinary business of the Annual General Meeting shall be:
- 15.5. To confirm the minutes of the previous Annual General Meeting and of any Special General Meeting or General Meeting held since then.
  - a. To receive and consider from the Committee:
  - b. the annual report of the Committee on the activities of the Association during the preceding financial year; and
- 15.6. the financial statements of the Association for the preceding financial year submitted by the Committee in accordance with Part 7 of the Act
- 15.7. To elect officers of the Association and then up to 5 ordinary members of the committee required to be elected under these rules and the By Laws.
- 15.8. To determine annual affiliation fees, team fees, including umpires' fees and CoM approved honorariums
- 15.9. To appoint an Auditor.
- 15.10. The Annual General Meeting may transact special business of which notice is given in accordance with these rules.
- 15.11. The Annual General Meeting shall be an addition to any other general meetings that may be held in the same year.
- 15.12. A member desiring to bring any business before an Annual General Meeting may give notice of that business 14 days prior to the date set for the

AGM in writing to the Secretary, who shall include that business in the final notice calling the Annual General Meeting

## **16. SPECIAL GENERAL MEETINGS**

**16.1.** Any general meeting of the Association, other than an annual general meeting or a disciplinary appeal meeting, is a special general meeting. The Committee may convene a special general meeting whenever it thinks fit.

**16.2.** No business other than that set out in the notice under rule 17 may be conducted at the meeting.

### **Note**

*General business may be considered at the meeting if it is included as an item for consideration in the notice under rule 33 and the majority of members at the meeting agree.*

### ***Special general meeting held at request of members***

**16.3.** The Committee must convene a special general meeting if a request to do so is made in accordance with subrule 16.3 (a-d) by at least 10% of the total number of affiliated club members.

- a.** A request for a special general meeting must:
- b.** be in writing; and
- c.** state the business to be considered at the meeting and any resolutions to be proposed; and
- d.** include the names and signatures of the members requesting the meeting; and be given to the Secretary.

**16.4.** If the Committee does not convene a special general meeting within one month after the date on which the request is made, the members making the request (or any of them) may convene the special general meeting.

**16.5.** A special general meeting convened by members under subrule (16.4):

- a.** must be held within 3 months after the date on which the original request was made; and may only consider the business stated in that request.

**16.6.** The Association must reimburse all reasonable expenses incurred by the members convening a special general meeting under subrule (16.3).

**16.7.** A special resolution is passed if not less than three-quarters of the members voting at a general meeting (whether in person or by proxy) vote in favour of the resolution.

*Note In addition to certain matters specified in the Act, a special resolution is required:*

- a.** to remove a committee member from office.
- b.** to alter these Rules, including changing the name or any of the purposes of the Association.

## **17. NOTICE OF ANNUAL OR SPECIAL GENERAL MEETINGS**

**17.1.** The Secretary (or, in the case of a special general meeting convened under rule 16.3, the members convening the meeting) must give to each member of the Association:

- a.** at least **21 days'** notice of a general meeting if a special resolution is to be proposed at the meeting; (Special General Meeting) or at least **14 days'** notice of a general meeting in any other case. (Annual General Meeting)

**17.2.** The notice must:

- a.** specify the date, time and place of the meeting; and
- b.** indicate the general nature of each item of business to be considered at the meeting; and
- c.** if a special resolution is to be proposed:
  - i.** state in full the proposed resolution; and
  - ii.** state the intention to propose the resolution as a special resolution; and
- d.** comply with rule 18.4.

**17.3.** This rule does not apply to a disciplinary appeal meeting.

***Note** Rule 13 sets out the requirements for notice of a disciplinary appeal meeting.*

**17.4.** No business other than that set out in the notice convening the meeting shall be transacted at the meeting.

**18. PROXIES**

- 18.1.** A delegate member may appoint another member as the delegate's member's proxy to vote and speak on the member's behalf at a general meeting other than at a disciplinary appeal meeting.
- 18.2.** The appointment of a proxy must be in writing and signed by the member making the appointment, using the format as prescribed by the CoM
- 18.3.** The member appointing the proxy may give specific directions as to how the proxy is to vote on the member's behalf, otherwise the proxy may vote on behalf of the member in any matter as the proxy sees fit.
- 18.4.** Notice of a general meeting given to a member under rule 17 must:
- a.** state that the member may appoint another member as a proxy for the meeting; and
  - b.** include a copy of any form that the Committee has approved for the appointment of a proxy.
- 18.5.** A form appointing a proxy must be given to the Chairperson of the meeting before or at the commencement of the meeting.
- 18.6.** A form appointing a proxy sent by post or electronically is of no effect unless it is received by the Association no later than 24 hours before the commencement of the meeting.

**19. USE OF TECHNOLOGY**

- 19.1.** A general meeting may be held if the CoM allows, and members may take part using technology that allows members to clearly and simultaneously communicate with each other participating member.
- 19.2.** For the purposes of this part, a member participating in a general meeting as permitted under subrule 19.1 is taken to be present at the meeting and, if the member votes at the meeting, is taken to have voted in person.
- 19.3.** As much as possible cameras must be on to show who is attending the meeting.

## 20. QUORUM AT GENERAL MEETINGS

**20.1.** 50% of members personally present, physically, by proxy or online: if permitted (being members entitled under these rules to vote at a General Meeting) shall constitute a quorum for the transaction of the business of a general meeting of the Association

**20.2.** All business that is transacted at the Annual General Meeting except for that specially referred to in these rules as being the business of the Annual General Meeting shall be deemed to be special business.

**20.3.** If a quorum is not present within **30 minutes** after the notified commencement time of a general meeting:

- a.** in the case of a meeting convened by, or at the request of, members under rule 16.3—the meeting must be dissolved; or

**Note**

*If a meeting convened by, or at the request of, members is dissolved under this subrule, the business that was to have been considered at the meeting is taken to have been dealt with. If members wish to have the business reconsidered at another special meeting, the members must make a new request under rule 16.3.*

- b.** in any other case:

- i.** the meeting must be adjourned to a date not more than **21 days** after the adjournment; and
- ii.** notice of the date, time and place to which the meeting is adjourned must be given at the meeting and confirmed by written notice given to all members as soon as practicable after the meeting.

**20.4.** If a quorum is not present within **30 minutes** after the time to which a general meeting has been adjourned under subrule 23.b, the members present at the meeting (if not fewer than 3) may proceed with the business of the meeting as if a quorum were present.

## 21. ADJOURNMENT

- 21.1.** The Chairperson of a general meeting at which a quorum is present may, with the consent of a majority of members present at the meeting, adjourn the meeting to another time at the same place or at another place.
- 21.2.** Without limiting subrule 21.1, a meeting may be adjourned:
- a.** if there is insufficient time to deal with the business at hand; or
  - b.** to give the members more time to consider an item of business.

### Example

*The members may wish to have more time to examine the financial statements submitted by the Committee at an annual general meeting.*

- 21.3.** No business may be conducted on the resumption of an adjourned meeting other than the business that remained unfinished when the meeting was adjourned.
- 21.4.** Notice of the adjournment of a meeting under this rule is not required unless the meeting is adjourned for **14 days** or more, in which case notice of the meeting must be given in accordance with rule 17.

## 22. VOTING AT A GENERAL MEETING

- 22.1.** On any question arising at a general meeting:
- a.** subject to subrule 22.3, each member who is entitled to vote has one vote; and
  - b.** members may vote personally or by proxy; and
  - c.** except in the case of a special resolution, the question must be decided on a majority of votes.
- 22.2.** If votes are divided equally on a question, the Chairperson of the meeting has a second or casting vote.
- 22.3.** A form appointing a proxy sent by post or electronically is of no effect unless it is received by the Association no later than 24 hours before the commencement of the meeting.
- 22.4.** if anyone abstains this must be noted.

- a. As constitution defines majority as **a majority of those present**, then abstentions will indirectly affect the outcome — because abstainers still count toward the “present” number.

**Example:**

- 10 presents, majority required = 6 (half of 10 + 1)
- 4 for, 3 against, 3 abstain → motion **fails**, because you didn't reach 6 in favour.

- 22.5. if a count is demanded by 3 or more members on any question—
  - a. the count must be taken at the meeting in the manner determined by the Chairperson of the meeting; and
  - b. the Chairperson must declare the result of the resolution on the basis of the count.
- 22.6. A count demanded on the election of the Chairperson or on a question of an adjournment must be taken immediately.
- 22.7. A count demanded on any other question must be taken before the close of the meeting at a time determined by the Chairperson.

## 23. SPECIAL RESOLUTIONS

- 23.1. A special resolution is passed if not less than three-quarters of the members voting at a general meeting (whether in person or by proxy) vote in favour of the resolution.

**Note** In addition to certain matters specified in the Act, a special resolution is required:

- a. to remove a committee member from office;
- b. to alter these Rules, including changing the name or any of the purposes of the Association.

## 24. DETERMINING WHETHER RESOLUTION CARRIED

- 24.1. Subject to subrule 24.2, the Chairperson of a general meeting may, on the basis of a show of hands, declare that a resolution has been:
  - a. carried; or
  - b. carried unanimously; or
  - c. carried by a particular majority; or

d. lost:

and an entry to that effect in the minutes of the meeting is conclusive proof of that fact.

**24.2.** If a count is demanded by 3 or more members on any question:

- a. the count must be taken at the meeting in the manner determined by the Chairperson of the meeting; and
- b. the Chairperson must declare the result of the resolution on the basis of the count.

**24.3.** A count demanded on the election of the Chairperson or on a question of an adjournment must be taken immediately.

**24.4.** A count demanded on any other question must be taken before the close of the meeting at a time determined by the Chairperson.

## **25. MINUTES OF GENERAL MEETING**

**25.1.** The Committee must ensure that minutes are taken and kept of each general & special meeting.

**25.2.** Any Conflicts of Interest must be noted before any meeting if it affects any item on the agenda.

**25.3.** The minutes must record the business considered at the meeting, any resolution on which a vote is taken and the result of the vote.

**25.4.** In addition, the minutes of each **annual general meeting** must include:

- a. the names of the members attending the meeting; and
- b. the financial statements submitted to the members in accordance with rule 15.6 and
- c. the certificate signed by 2 committee members certifying that the financial statements give a true and fair view of the financial position and performance of the Association; and
- d. any audited accounts and auditor's report or report of a review accompanying the financial statements that are required under the Act.

**26. DELEGATES MEETINGS AND OTHER MEETINGS**

- 26.1.** All meetings of the Association other than Annual General Meetings and those convened as Special General Meetings shall be called Delegates Meetings.
- 26.2.** A quorum for the transaction of the business of the delegates meeting is **50 %** of all eligible members.
- a.** This includes the associate members for the junior delegate meetings.
- 26.3.** At least **7 days'** notice of a delegates meeting is required unless in extreme case the CoM can call one within a shorter frame time for exceptional reasons.
- 26.4.** The Secretary, prior to any delegate meeting will request any agenda items prior to a meeting and distribute this agenda no less than 5 days prior to a delegates meeting.
- 26.5.** General Business will be on the agenda and if time permits the Chair can call for other General Business from the floor
- 26.6.** The procedure at Delegates Meetings shall be the same process for any general meetings of the Association.
- 26.7.** The Committee may convene other meetings from time to time in accordance with the By Laws.

**POWERS OF COMMITTEE****27. COMMITTEE POWERS**

- 27.1.** The business of the Association must be managed by or under the direction of a committee.
- 27.2.** The Committee may exercise all the powers of the Association except those powers that these Rules or the Act require to be exercised by general meetings of the members of the Association.
- 27.3.** The Committee may:
- a.** appoint and remove staff; and
  - b.** establish subcommittees consisting of members with terms of reference it considers appropriate.

**28. DELEGATION**

- 28.1.** The Committee may delegate to a member of the Committee, a subcommittee or staff, any of its powers and functions other than:
- a.** this power of delegation; or
  - b.** a duty imposed on the Committee by the Act or any other law.
- 28.2.** The delegation must be in writing and may be subject to the conditions and limitations the Committee considers appropriate.
- 28.3.** The Committee may, in writing, revoke a delegation wholly or in part.

**29. COMPOSITION OF COMMITTEE**

- 29.1.** The Committee consists of:
- a.** a President; and
  - b.** a Vice-President; and
  - c.** a Secretary: (or CoM appointed Competition Administrator) and
  - d.** a Treasurer; and
  - e.** 5 ordinary members (if any) elected under rule 38. Some ordinary member positions may from time to time have a role assigned to it and will be named on the office bearer and ordinary member nomination form.
- 29.2.** The number of ordinary members may change as determined by the CoM and be noted at the AGM for that year.
- 29.3.** The CoM may from time to time co-opt a member onto the CoM in an advisory role, with non-voting rights for 1-year terms with an option to be re-co-opted.
- a.** an umpire's representative who shall be nominated by the Umpire's Association and is named at the AGM

**30. GENERAL DUTIES**

- 30.1.** As soon as practicable after being elected or appointed to the Committee, each committee member must become familiar with these Rules and the Act.

- 30.2.** The Committee is collectively responsible for ensuring that the Association complies with the Act and that individual members of the Committee comply with these Rules.
- 30.3.** Committee members must exercise the member's powers and discharge the member's duties with reasonable care and diligence.
- 30.4.** Committee members must exercise the member's powers and discharge the member's duties:
- a.** in good faith in the best interests of the Association; and
  - b.** for a proper purpose.
- 30.5.** Committee members and former committee members must not make improper use of:
- a.** the member's, or former member's, position; or
  - b.** information acquired by virtue of holding the members, or former member's, position:
  - c.** so as to gain an advantage for themselves or any other person or to cause detriment to the Association.

**Note**

See also Division 3 of Part 6 of the Act which sets out the general duties of the office holders of an incorporated association.

- d.** In addition to any duties imposed by these Rules, a committee member must perform any other duties imposed from time to time by resolution at a general meeting.

**31. PRESIDENT and VICE-PRESIDENT**

- 31.1.** Subject to subrule 31.2 the President, or in their absence, the Vice President shall preside as Chairperson at each meeting of the Association.
- 31.2.** If the President or Vice President are both absent from a meeting, or are unable to preside, the Chairperson of the meeting must be:
- a.** in the case of a general meeting—a member elected by the other members present; or
  - b.** in the case of a committee meeting—a committee member elected by the other committee members present.

**32. SECRETARY**

- 32.1.** The Secretary must perform any duty or function required under the Act to be performed by the secretary of an incorporated association.

***Example***

*Under the Act, the secretary of an incorporated association is responsible for lodging documents of the association with the Registrar.*

- 32.2.** The Secretary must:
- a.** maintain the register of members in accordance with rule 18; and
  - b.** keep custody of the common seal (if any) of the Association and, except for the financial records referred to in rule 56.2, all books, documents and securities of the Association in accordance with rules 59 and 62; and
  - c.** subject to the Act and these Rules, provide members with access to the register of members, the minutes of general meetings and other books and documents; and
- perform any other duty or function imposed on the Secretary by these Rules.
- 32.3.** The Secretary must give to the Registrar notice of the Secretary's appointment within **14 days** after the appointment.

**33. TREASURER**

- 33.1.** The Treasurer must:
- a.** receive all moneys paid to or received by the Association and issue receipts for those moneys in the name of the Association; and
  - b.** ensure that all moneys received are paid into the account of the Association within 5 working days after receipt; and
  - c.** make any payments authorised by the Committee or by a general meeting of the Association from the Association's funds; and
  - d.** ensure EFTs are approved by at least 2 committee members. They must not be a recipient of the money they are approving
- 33.2.** The Treasurer must:
- a.** ensure that the financial records of the Association are kept in accordance with the Act; and

- b.** coordinate the preparation of the financial statements of the Association and the Association's certification by the Committee prior to the Association's submission to the annual general meeting of the Association.

- 33.3.** The Treasurer must ensure that all other committee members have access to the accounts and financial records of the Association.

#### **34. WHO IS ELIGIBLE TO BE A COMMITTEE MEMBER**

- 34.1.** A member is eligible to be elected or appointed as a committee member if the member:
- a.** is 18 years or over; and
  - b.** is entitled to vote at a general meeting.

#### **35. POSITIONS TO BE DECLARED VACANT**

- 35.1.** This rule applies to:
- a.** the first annual general meeting of the Association after its incorporation; or
  - b.** any subsequent annual general meeting of the Association, after the annual report and financial statements of the Association have been received.
- 35.2.** The Chairperson of the meeting must declare all positions on the Committee vacant and hold elections for those positions in accordance with rules 36 to 39.

#### **36. NOMINATIONS**

- 36.1.** The nomination of candidates for election as Officer Bearers of the Association, and Ordinary Members is defined in these rules
- a.** shall be made in writing, signed by two members of the Association and accompanied by the written consent of the candidate (which may be endorsed on the nomination form); and

- b.** shall be delivered to the Secretary of the Association not less than **seven (7) days** before the date fixed for the holding of the annual general meeting.
- 36.2.** If insufficient nominations are received to fill all vacancies on the Committees, the candidates nominated shall be deemed to be elected and further nominations shall be received at the annual general meeting.
- 36.3.** If the number of nominations received is equal to the number of vacancies to be filled, the persons nominated shall be deemed to be elected.
- 36.4.** If the number of nominations exceeds the number of vacancies to be filled a ballot shall be held at the annual general meeting.
- 36.5.** The ballot for the election of office bearers and other members of Committees shall be conducted at the Annual General Meeting in such usual and proper manner as the Committee may direct.
- 36.6.** Prior to the election of each position, the Chairperson of the meeting must call for nominations to fill that position.
- 36.7.** An eligible member of the Association may:
  - a.** nominate himself or herself; or
  - b.** with the member's consent, be nominated by another member.
- 36.8.** A member who is nominated for a position and fails to be elected to that position may be nominated for any other position for which an election is yet to be held.

### **37. ELECTION OF OFFICE BEARERS**

- 37.1.** At the annual general meeting, separate elections must be held for each of the following positions:
  - a.** President
  - b.** Vice-President
  - c.** Secretary
  - d.** Treasurer
- 37.2.** If only one member is nominated for the position, the Chairperson of the meeting must declare the member elected to the position.

- 37.3.** If more than one member is nominated, a ballot must be held in accordance with rule 39.
- 37.4.** On the President's election, the new President may take over as Chairperson of the meeting.

### **38. ELECTION OF ORDINARY MEMBERS**

- 38.1.** The annual general meeting must by resolution decide the number of ordinary members of the Committee (if any) it wishes to hold office for the next year.
- 38.2.** A single election may be held to fill all of those positions.
- 38.3.** If the number of members nominated for the position of ordinary committee member is less than or equal to the number to be elected, the Chairperson of the meeting must declare each of those members to be elected to the position.
- 38.4.** If the number of members nominated exceeds the number to be elected, a ballot must be held in accordance with rule 39.

### **39. BALLOT**

- 39.1.** If a ballot is required for the election for a position, the Chairperson of the meeting must appoint a member to act as returning officer to conduct the ballot.
- 39.2.** The returning officer must not be a member nominated for the position.
- 39.3.** Before the ballot is taken, each candidate may make a short speech in support of the candidate's election.
- 39.4.** The election must be by secret ballot.
- 39.5.** If the election is held in person, the returning officer must give a blank piece of paper to—
- a.** each member present in person; and
  - b.** each proxy appointed by a member.

#### ***Example***

*If a member has been appointed the proxy of 5 other members, the member must be given 6 ballot papers—one for the member and one each for the other members.*

- 39.6.** If the ballot is for a single position, the voter must write on the ballot paper the name of the candidate for whom they wish to vote.
- 39.7.** If the ballot is for more than one position—
- a.** the voter must write on the ballot paper the name of each candidate for whom they wish to vote;
  - b.** the voter must not write the names of more candidates than the number to be elected.
- 39.8.** Ballot papers that do not comply with subrule 39.7 b are not to be counted.
- 39.9.** Each ballot paper on which the name of a candidate has been written counts as one vote for that candidate.
- 39.10.** The returning officer must declare elected the candidate or, in the case of an election for more than one position, the candidates who received the most votes.
- 39.11.** If the returning officer is unable to declare the result of an election under subrule 39.10 because 2 or more candidates received the same number of votes, the returning officer must:
- a.** conduct a further election for the position in accordance with subrules 39.4 to 39.10 to decide which of those candidates is to be elected; or
  - b.** with the agreement of those candidates, decide by lot which of them is to be elected.

***Examples***

*The choice of candidate may be decided by the toss of a coin, drawing straws or drawing a name out of a hat.*

**40. TERM OF OFFICE**

- 40.1.** Subject to subrule 40.3 and rule 41, a committee member holds office until the positions of the Committee are declared vacant at the next annual general meeting.
- 40.2.** A committee member may be re-elected.
- 40.3.** A general meeting of the Association may:
- a.** by special resolution remove a committee member from office; and

- b. elect an eligible member of the Association to fill the vacant position in accordance with this Division.

**40.4.** A member who is the subject of a proposed special resolution under subrule 40.3.a may make representations in writing to the Secretary or President of the Association (not exceeding a reasonable length) and may request that the representations be provided to the members of the Association.

**40.5.** The Secretary or the President may give a copy of the representations to each member of the Association or, if they are not so given, the member may require that they be read out at the meeting at which the special resolution is to be proposed.

#### **41. VACATION OF OFFICE**

**41.1.** A committee member may resign from the Committee by written notice addressed to the Committee.

**41.2.** A person ceases to be a committee member if the person:

- a. ceases to be a member of the Association; or
- b. fails to attend 3 consecutive committee meetings (other than special or urgent committee meetings) without leave of absence under rule 52; or
- c. otherwise ceases to be a committee member by operation of section 78 of the Act.

**Note**

*A Committee member may not hold the office of Secretary if they do not reside in Australia.*

#### **42. FILLING CASUAL VACANCIES**

**42.1.** The Committee may appoint an eligible member of the Association to fill a position on the Committee that:

- a. has become vacant under rule 41; or
- b. was not filled by election at the last annual general meeting.

**42.2.** If the position of Secretary becomes vacant, the Committee must appoint a member to the position within **14 days** after the vacancy arises.

**42.3.** Rule 40 applies to any committee member appointed by the Committee under subrule 42.1 or 42.2.

**42.4.** The Committee may continue to act despite any vacancy in its membership.

**42.5.** The members of the Association may, by resolution, in writing and the signatures of those requesting the resolution seek to have a Special General meeting held to request the removal any member of the Delegates or Committee or constituted committees of the Association before the expiry of the term of office and appoint another member in their role for the remainder of the term.

### **43. MEETINGS OF COMMITTEE**

**43.1.** The Committee must meet at least 4 times in each year at the dates, times and places determined by the Committee.

**43.2.** The date, time and place of the first committee meeting must be determined by the members of the Committee as soon as practicable after the annual general meeting of the Association at which the members of the Committee were elected.

**43.3.** Special committee meetings may be convened by the President or by any 4 members of the Committee.

### **44. NOTICE OF MEETINGS**

**44.1.** Notice of each committee meeting must be given to each committee member no later than 7 days before the date of the meeting.

**44.2.** Notice may be given of more than one committee meeting at the same time.

**44.3.** The notice must state the date, time and place of the meeting.

**44.4.** If a special committee meeting is convened, the notice must include the general nature of the business to be conducted.

**44.5.** The only business that may be conducted at the meeting is the business for which the meeting is convened.

**45. URGENT MEETINGS**

- 45.1.** In cases of urgency, a meeting can be held without notice being given in accordance with rule 44 provided that as much notice as practicable is given to each committee member by the quickest means practicable.
- 45.2.** Any resolution made at the meeting must be passed by an absolute majority of the Committee.
- 45.3.** The only business that may be conducted at an urgent meeting is the business for which the meeting is convened.

**46. PROCEDURE AND ORDER OF BUSINESS**

- 46.1.** The procedure to be followed at a meeting of a committee must be determined from time to time by the Committee.
- 46.2.** The order of business may be determined by the members present at the meeting.

**47. USE OF TECHNOLOGY**

- 47.1.** A committee meeting may be held by the use of technology that allows committee members to clearly and simultaneously communicate with each other participating member.
- 47.2.** For the purposes of this Part, a committee member participating in a committee meeting as permitted under subrule 47.1 is taken to be present at the meeting and, if the member votes at the meeting, is taken to have voted in person.

**48. QUORUM**

- 48.1.** No business may be conducted at a committee meeting unless a quorum is present.
- 48.2.** The quorum for a committee meeting is the presence (in person or as allowed under rule 47) of a majority of the committee members holding office.
- 48.3.** If a quorum is not present within **30 minutes** after the notified commencement time of a committee meeting:
- a.** in the case of a special meeting—the meeting lapses;

- b.** in any other case—the meeting must be adjourned to a date no later than 14 days after the adjournment and notice of the date, time and place to which the meeting is adjourned must be given in accordance with rule 44.

#### **49. VOTING**

- 49.1.** On any question arising at a committee meeting, each committee member present at the meeting has one vote.
- 49.2.** A motion is carried if a majority of committee members present and voting at the meeting vote in favour of the motion.
- 49.3.** Subrule 49.2 does not apply to any motion or question which is required by these Rules to be passed by an absolute majority of the Committee.
- 49.4.** If votes are divided equally on a question, the Chairperson of the meeting has a second or casting vote.
- 49.5.** Voting by proxy is not permitted.

#### **50. CONFLICT OF INTEREST**

- 50.1.** A committee member who has a material personal interest in a matter being considered at a committee meeting must disclose the committee member's position and the nature and extent of that interest to the Committee.
- 50.2.** The member:
  - a.** must not be present while the matter is being considered at the meeting; and
  - b.** must not vote on the matter.

#### **Note**

*Under section 81(3) of the Act, if there are insufficient committee members to form a quorum because a member who has a material personal interest is disqualified from voting on a matter, a general meeting may be called to deal with the matter.*

- 50.3.** This rule does not apply to a material personal interest:
  - a.** that exists only because the member belongs to a class of persons for whose benefit the Association is established; or

- b.** that the member has in common with all, or a substantial proportion of, the members of the Association.
- 50.4.** The Committee must keep a conflict-of-interest register.
- 50.5.** The conflict-of-interest register must record the following:
  - a.** the name and position of the member who has disclosed a material personal interest.
  - b.** a description of the nature and extent of that interest.
  - c.** a management plan documenting actions required to mitigate the conflict.

## **51. MINUTES OF THE MEETING**

- 51.1.** The Committee must ensure that minutes are taken and kept of each committee meeting.
- 51.2.** The minutes must record the following:
  - a.** the names of the members in attendance at the meeting;
  - b.** the business considered at the meeting;
  - c.** any resolution on which a vote is taken and the result of the vote;
  - d.** any material personal interest disclosed under rule 65.

## **52. LEAVE OF ABSENCE**

- 52.1.** The Committee may grant a committee member leave of absence from committee meetings for a period not exceeding 3 months.
- 52.2.** The Committee must not grant leave of absence retrospectively unless it is satisfied that it was not feasible for the committee member to seek the leave in advance.

## **53. REMOVAL OF COMMITTEE AND DELEGATE MEMBERS**

- 53.1.** The CoM at a Special General Meeting may, by resolution, request the removal of any member of the Delegates or Committee or constituted committees of the Association before the expiry of the term of office and appoint another member in their stead for the remainder of the term.

- 53.2.** Where the member to whom a proposed resolution referred to in sub-clause 53.1 makes representations in writing to the Secretary or President of the Association (not exceeding a reasonable length) and requests that they be notified to the members of the Association, the Secretary or the President may send a copy to each member of the Association or, if they are not so sent, the member may request that they be read out at the meeting.

## **FINANCIAL MATTERS**

### **54. SOURCE OF FUNDS**

- 54.1.** The funds of the Association may be derived from joining fees, annual subscriptions, donations, fundraising activities, grants, interest and any other sources approved by the Committee.

### **55. MANAGEMENT FUNDS**

- 55.1.** The Association must open an account with a financial institution from which all expenditure of the Association is made and into which all the Association's revenue is deposited.
- 55.2.** Subject to any restrictions imposed by a general meeting of the Association, the Committee may approve expenditure on behalf of the Association.
- 55.3.** The Committee may authorise the Treasurer to expend funds on behalf of the Association (including by electronic funds transfer) up to a specified limit without requiring approval from the Committee for each item on which the funds are expended.
- 55.4.** All cheques, drafts, bills of exchange, promissory notes and other negotiable instruments must be signed by 2 committee members, with their being 3 signatories lodged with the bank. No signatories can be related or live in the same household.
- 55.5.** All funds of the Association must be deposited into the financial account of the Association no later than 5 working days after receipt.
- 55.6.** Despite subrule 55.1, the Committee may authorise the Treasurer to maintain a petty cash fund for minor and incidental expenses of the Association.

- 55.7.** The Treasurer must record the withdrawal or deposit of an amount from the petty cash fund at the time of the transaction.

## **56. FINANCIAL RECORDS**

- 56.1.** The Association must keep financial records that:
- a.** correctly record and explain its transactions, financial position and performance; and
  - b.** enable financial statements to be prepared as required by the Act.
- 56.2.** The Association must retain the financial records for 7 years after the transactions covered by the records are completed.
- 56.3.** The Treasurer must keep in the Treasurer's custody, or under the Treasurer's control:
- a.** the financial records for the current financial year; and
  - b.** any other financial records as authorised by the Committee.

## **57. FINANCIAL STATEMENTS**

- 57.1.** For each financial year, the Committee must ensure that the requirements under the Act relating to the financial statements of the Association are met.
- 57.2.** Without limiting subrule (57.1), those requirements include:
- a.** the preparation of the financial statements; and
  - b.** if required, the review or auditing of the financial statements; and
  - c.** the certification of the financial statements by the Committee; and
  - d.** the submission of the financial statements to the annual general meeting of the Association; and
  - e.** the lodgement with the Registrar of the financial statements and accompanying reports, certificates, statements and fee.

## GENERAL MATTERS

### 58. SIGNING OF NEGOTIABLE INSTRUMENTS

- 58.1.** All, drafts, bills of exchange, promissory notes, digital transactions and any other negotiable instruments shall be signed by any two of three official signatories.
- 58.2.** The signatories of any bank accounts must not be related or live in the same household.

### 59. COMMON SEAL

- 59.1.** The Common Seal of the Association shall be kept in the custody of the Secretary.
- 59.2.** The Common Seal shall not be affixed to any instrument except by authority of the Committee and the affixing of the Common Seal shall be attested by the signatures of two of the President, Secretary or Treasurer.

### 60. REGISTERED ADDRESS

- 60.1.** The registered address of the Association is:
- a. the address determined from time to time by resolution of the Committee; or
  - b. if the Committee has not determined an address to be the registered address—the postal address of the Secretary.

### 61. NOTICE REQUIREMENTS

- 61.1.** Any notice required to be given to a member or a committee member under these Rules may be given:
- a. by handing the notice to the member personally; or
  - b. by sending it by post to the member at the address recorded for the member on the register of members; or
  - c. by email or facsimile transmission.
- 61.2.** Subrule 61.1 does not apply to notice given under rule 45.
- 61.3.** Any notice required to be given to the Association, or the Committee may be given—

- a. by handing the notice to a member of the Committee; or
- b. by sending the notice by post to the registered address; or
- c. by leaving the notice at the registered address; or
- d. if the Committee determines that it is appropriate in the circumstances:
  - i. by email to the email address of the Association or the Secretary; or
  - ii. by facsimile transmission to the facsimile number of the Association.

## **62. CUSTODY OF BOOKS AND OTHER DOCUMENTS**

**62.1.** Except as otherwise provided for in these rules, the Secretary shall keep in their custody or under their control, all books, documents and securities of the Association

**62.2.** Members may on request inspect free of charge any of the following:

- a. the register of members;
- b. the minutes of general meetings;
- c. subject to subrule (62.2), the financial records, books, securities and any other relevant document of the Association, including minutes of Committee meetings.

***Note:** See note following rule 12 for details of access to the register of members.*

**62.3.** The Committee may refuse to permit a member to inspect records of the Association that relate to confidential, personal, employment, commercial or legal matters or where to do so may be prejudicial to the interests of the Association.

**62.4.** The Committee must on request make available, or provide copies of, these Rules available to members and applicants for membership free of charge.

**62.5.** Subject to subrule 62.2, a member may request a copy of, or make a copy of, any of the other records of the Association referred to in this rule and the Association may charge a reasonable fee for provision of a copy of such a record.

**63. WINDING UP AND CANCELLATION**

- 63.1.** The Association may be wound up voluntarily by special resolution.
- 63.2.** In the event of the winding up or the cancellation of the incorporation of the Association, the surplus assets of the Association must not be distributed to any members or former members of the Association.
- 63.3.** Subject to the Act and any court order made under section 133 of the Act, the surplus assets must be given to a body that has similar purposes to the Association, and which is not carried on for the profit or gain of its individual members.
- 63.4.** The body to which the surplus assets are to be given must be decided by special resolution.

**64. ALTERATIONS OF STATEMENT OF PURPOSES AND RULES**

- 64.1.** These rules and statement of purposes of the Association shall not be altered except in accordance with the Act.
- 64.2.** An alteration of these Rules does not take effect unless or until it is approved by the Registrar. If these Rules (other than rule 1, 2 or 3) are altered, the Association is taken to have adopted its own rules, not the model rules.